Now, apply these just and reasonable principles to Alabama, in her relation of a foreign and independent state, reposing upon the rights reserved to her by the tenth amendment of the constitution of the United States; and then show the power that can compel her to pass penal laws to guard and protect those perfect, ascertained, constitutional rights from the illegal invasion of a bank created by any other state. If this power exists at all, it can be shown, and the authority by which it acts. But not even a reasonable pretence for any such power or authority has been shown. The conclusion must, therefore, be, that Alabama, as an independent foreign state, owing no duty, nor being under any obligation to either of the states, by whose corporations she was invaded, was the sole and exclusive judge of what was proper or improper to be done; and consequently, had a right to examine and determine whether she could grant a favor to either of those states, without injury to herself; unless, indeed, there be a controlling power, in this court, derived from some provision of the constitution of the United States. As none such has been set up, or relied upon, in the opinion of the majority of the court, for the present, I have a right to conclude, that none such exists. And without considering any of the minor points discussed in the argument, or noticed in the opinion, I dismiss the subject.

Judgment reversed.

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